

Pulukuri Kottaya v. King-Emperor

Citation: (1946-47) 74 IA 65 / AIR 1947 PC 67 | Court: Privy Council / Supreme Court | Year: 1947

Coram: Privy Council (Lord Wright, Lord Simonds, Sir John Beaumont) | Subject: Evidence & BSA 2023 | Provisions: Evidence Act Sec 25, 26,

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Section 27 of the Evidence Act (now Section 23 BSA 2023) is a narrow proviso to the ban on police confessions. ONLY that portion of the custodial statement which distinctly relates to the discovery of a physical fact (such as a concealed weapon) is admissible in evidence.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Evidence Act Sec 25, 26, 27 / BSA 2023 Sec 23. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

â€ Whether the impugned state actions or commercial conduct conformed to Evidence Act Sec 25, 26, 27 / BSA 2023 Sec 23.

â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.

Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

The fact discovered is not merely the physical object, but the object in relation to the place where it was hidden and the knowledge of the accused. Confession of having used the weapon to commit murder remains strictly inadmissible under Sections 25 and 26.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

â€ Established the classical locus classicus on Section 27 recovery of weapon/physical facts.

â€ Severed confession of guilt from statement of knowledge regarding concealment.

â€ Standard evidential test in criminal investigations under IEA 1872 and BSA 2023.